

25STCV16050 25STCV16050

County: los-angeles

Division: Civil Law and Motion

Department: 300

Hearing date: 2026-06-23

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Case Number: 25STCV16050 Hearing Date: June 23, 2026 Dept: 300

CASE NUMBER: 25STCV16050

CASE NAME: Carolyn Lakey, et al. vs. Interinsurance

Exchange of the Automobile Club of Southern California

TYPE OF MOTION: (1) Motion to Compel Respondent Carolyn Lakey's

Responses to Special Interrogatories, Set No. One, and Request for Monetary

Sanctions.

(2)

Motion to Compel Respondent Carolyn Lakey's Responses to Form Interrogatories,

Set No. One, and Request for Monetary Sanctions.

(3)

Motion to Compel Respondent Carolyn Lakey's Responses to Request for Production

of Documents, Set No. One, and Request for Monetary Sanctions.

(4)

Motion to Compel Respondent Carolyn Lakey's Responses to Requests for

Admissions, Set No. One, and Request for Monetary Sanctions.

FILING PARTY: Petitioner Interinsurance

Exchange of the Automobile Club of Southern California (Petitioner / Exchange)

RESPONDING

PARTY: Unopposed

HEARING DATE: June 23, 2026

Motions (1)-(4)

Petitioner moves the Court for an order compelling

Respondent Carolyn Lakey (Lakey) to provide verified responses to Petitioners:

(1) Special Interrogatories, Set No. One; (2) Form Interrogatories, Set No.

One; (3) Requests for Production, Set No. One; and (4) Requests for Admissions,

Set No. One. Additionally, Petitioner seeks sanctions in the total amount of

\$3,840.00.

Decision

The motions are GRANTED. Lakey is ORDERED to serve

verified responses, without objections within 30 days. The truth of the matters

specified in the Requests for Admission be deemed admitted as to Lakey.

Lakey is ORDERED to pay \$1,040.00 in sanctions, payable

within 30 days.

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Legal Standard

Compelling Responses to Interrogatories

Pursuant to Code of Civil Procedure section 2030.290,

“[i]f a party to whom interrogatories are directed fails to serve a timely response...[t]he party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or the protection for work product...[and] [t]he party propounding the interrogatories may move for an order compelling response to the interrogatories.”²

(Ibid., § 2030.290 (a)-(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that needs to be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Leach v. Superior Court (1980)

111 Cal.App.3d 902, 905-906.)

Compelling Responses to Demand for Production of

Documents

Similarly, under Code of Civil Procedure section

2031.300, “[i]f a party to whom a demand for inspection, copying, testing, or

sampling is directed fails to serve a timely response to it...[t]he party to whom

the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product...[and] [t]he party making the demand may move for an order compelling response to the demand.¿ (Ibid., § 2031.300(a)-(b).)

Requests for Admission

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine.

(Code Civ. Proc., § 2033.280(a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (Code Civ. Proc., § 2033.280(c).)

Sanctions

Sanctions may be imposed for misuse of the discovery process. (Code Civ. Proc., § 2023.030(a).) Failing to respond or to submit to an authorized method of discovery constitutes a misuse of the discovery process. (Code Civ. Proc., § 2023.010 (d).)

Sanctions are mandatory in connection with motions to

compel responses to interrogatories and requests for production of documents against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel unless the court “finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290(c), 2031.300(c).) Cal. Rules of Court, Rule 3.1348(a) provides that a court may award sanctions under the Discovery Act in favor of the party who files a motion to compel discovery even if no opposition was filed or if the requested discovery was provided to the moving party after the motion was filed.

Sanctions are mandatory against the party, the attorney, or both whose failure to serve a timely response to the request necessitated the motion to deem request for admissions as admitted. (Code Civ. Proc., § 2033.280(c); see also Cal. Rules of Court R. 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

Discussion

Petitioner moves the Court for an order compelling

Respondent Carolyn Lakey (Lakey) to provide verified responses to Petitioners:

(1) Special Interrogatories, Set No. One; (2) Form Interrogatories, Set No. One; (3) Requests for Production, Set No. One; and (4) Requests for Admissions, Set No. One. Additionally, Petitioner seeks sanctions in the total amount of \$3,840.00.

The Civil Discovery Act is applicable to arbitration proceedings for the recovery of damages under insurance. (Insurance Code, § 11580.2(f) [“Title 4 (commencing with Section 2016.010) of Part 4 of the Code of Civil Procedure shall be applicable to these determinations, and all rights, remedies, obligations, liabilities, and procedures set forth in Title 4 (commencing with Section 2016.010) of Part 4 of the Code of Civil Procedure shall be available to both the insured and the insurer at any time after the accident....”].)

On November 9, 2023, Respondents Lakey and Fuller initiated uninsured motorist arbitration pursuant to Insurance Code section 11580.2. (Motion, p. 3.) Thereafter, Exchange initiated the instant action pursuant to Insurance Code section 115802(f).

Here, “[o]n January 13, 2025, the Exchange initiated uninsured motorist discovery pursuant to California Insurance Code Section 11580.2(f). (Kelly Decl., ¶ 2.) The propounded discovery consisted of Special Interrogatories, Set No. One; Form Interrogatories, Set No. One; Requests for Production, Set No. One; and Requests for Admissions, Set No. One. (Ibid.)

After failing to receive a response from Lakey, Petitioner provided Lakey with a meet and confer correspondence requesting that Lakey provide responses by April 11, 2025. (Ibid., ¶ 3.) However, Lakey failed to provide verified discovery responses to the propounded discovery by the applicable deadline. (Ibid., ¶ 4.)

Accordingly, as Lakey has failed to serve verified responses to Petitioner's (1) Special Interrogatories, Set No. One; (2) Form Interrogatories, Set No. One; and (3) Requests for Production, Set No. One. The Court finds that Petitioner is entitled to an order compelling Lakey's response to such discovery without objections. Further, as Lakey failed to serve responses to Petitioner's (4) Requests for Admission, the Court finds that Petitioner is entitled to an order that the genuineness of any documents and the truth of any matters specified in the Requests for Admission be deemed admitted as to Lakey.

As the motions are granted, the Court finds that sanctions are warranted. However, sanctions are granted in a reduced amount due to the simplicity of the motions, lack of opposition, and the nature of concurrent facts. Lakey is ordered to pay Petitioner's Counsel \$800 (\$200 an hour x 4 hours) plus \$240 in filing fees for the instant motions, resulting in a total sanction of \$1,040.00.

Conclusion

Based on the foregoing, the motions are GRANTED. Lakey

is ORDERED to serve verified responses, without objections within 30 days. The

truth of the matters specified in the Requests for Admission be deemed admitted

as to Lakey.

Lakey is ORDERED to pay \$1,040.00 in sanctions, payable

within 30 days.